

Writ against Clause 6.9 load-increase direction premature pending s.126(3) objection

High Court of Judicature at Allahabad · Division Bench · 20 March 2013 · Writ-C No. 16143 of 2013 · **Writ dismissed as premature; s.126(3) objection then s.127 appeal**

HEADNOTE

A writ challenging a Clause 6.9 direction to increase sanctioned load is premature while the consumer's Section 126(3) objection is still pending. After that objection is decided, the statutory remedy is an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Smt. Kamla Sharma was directed on 9 August 2012 to increase her electricity load from 1 KVA to 2.1 KVA under Clause 6.9 of the U.P. Electricity Supply Code, 2005. She filed an objection under Section 126(3) of the Electricity Act, 2003, which remained pending. While that objection was still undecided she petitioned the Allahabad High Court by writ to challenge the load-increase direction. The State appeared through Standing Counsel.

HOLDING-UNITS

INTERPLAY · UP-2005::6.9

writ-against-load-increase-premature-pending-s126-objection

HOLDING

A writ petition against a direction under Clause 6.9 of the U.P. Electricity Supply Code, 2005 to increase electricity load is premature while the consumer's objection under Section 126(3) of the Electricity Act, 2003 remains pending. Once that objection is decided, the consumer's remedy is an appeal under Section 127. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ challenging a Clause 6.9 direction to increase sanctioned load is premature while the consumer's Section 126(3) objection is still pending. After that objection is decided, the statutory remedy is an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

opportunity-before-final-assessment A writ challenging a Clause 6.9 direction to increase sanctioned load is premature while the consumer's Section 126(3) objection is still pending. After that objection is decided, the statutory remedy is an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.9 LOAD-INCREASE DIRECTION AND OF THE PENDING SECTION 126(3) OBJECTION

¶ 1